

MULUND COLLEGE OF COMMERCE (AUTONOMOUS)

Programme: B. Com Business Administration

Class: FYBBA Semester: II

Exam: External

Name of the Subject: Law for everyone

Date of Exam: 03/04/2024

Marks: 30

Time: 2 hours

Instructions: 1) Figures to the right indicate maximum marks.

Q1 Explain the following with case laws or provisions of Companies Act:

A) The promoters of a company want to name their company. However, they are not aware whether the name/s they have selected are already in use or available. They also wish to ensure that the name they select should not be used up by another company during the time the process of incorporation is completed. Advise them the importance of the name clause alongwith its provisions. Explain to them the provisions for selection of name and procedure for reservation of name. **08**

B) A company issued a bond under its common seal signed by two directors. The articles provided that the directors might borrow on bond such sums provided they are authorised by an ordinary resolution of the company. However, no such resolution was passed. Is the company liable? Why? Give reference to any existing judgements/case laws **07**

Q.2 Attempt any three out of the following. 15

- A)** What are patents? Explain what is patentable and what is not patentable.
- B)** Explain the provisions regarding liability of partners in case of LLP.
- C)** Explain in detail the provisions regarding geographical indicators.
- D)** Explain a minors' position in a partnership.